ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	101th Commission Meeting
DATE:	26 October 2022
TIME:	02:00 PM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSION	DECISIONS
1.	**Update on the IEC on Ethics, Integrity & Professionalism- ED & Consultant** *The consultant (iBEST) presented the draft concept (attached as annex 1) and script for the Information, Education and Communication (IEC) material on Ethics, Integrity and Professionalism so that they can proceed with the visuals if the concept is endorsed. Anchored on the various addresses of His Majesty, the consultant has identified various themes and targeted interviewees for the IEC.* *The objective of the IEC is to expose current problems, identify solutions and see how individual citizens are taking their responsibility towards fighting corruption, followed by a way forward from the ACC.*	**Noting the draft concept and the script, the Commission directed the following:** ● **To assess the relevance of the targeted interviewee identified against the themes. For instance, the appropriate interviewee for the misplaced compassion can be someone from the Judiciary, check and balance for the Executive (Prime Minister) and Legislative (Speaker), and meritocracy for RCSC Chairperson.** ● **As for the theme integrity, multiple interviewees other than students such as businessman and contractor can be included to see the differences in their perceptions.** ● **Regarding the script, for the introductory scene, the scene on collusive bidding can be portrayed instead of the gambling scene.** ● **To take away the proposed insertion of definition on corruption.** ● **To recreate an imaginary scene of a society free of corruption.** ● **To complete the IEC before the International Anti-Corruption Day (9 December 2022)**

Deki

2.	**Regular update on HR – HRS** *The HRO updated the Commision on the decisions of the 74th HRC meeting.* *In addition, the HRO apprised the Commission on the communication received from the RCSC pertaining proposal for the undergraduate courses related to the anti-corruption.* .	**Noting the decisions of the HRC, some of the specific directions were as follow:** ● **Expedite Short Term Training.** ● **Given that the Pay Commission is currently working on the pay revision, HRS to be prepared with our proposal should there be any consultation on the same in the coming days, otherwise share the proposal esp. the retention options, to the Pay Commission for their information and consideration.** ● **Continue to do the integrity vetting of the applicants who have applied for the various vacancies announced by the ACC.** ● **Regarding the proposal for the undergraduate courses, one for the Criminology with Psychology and one for the Forensic to be proposed.**
3.	**Regular update on IVS – DoPS** *The Director, DoPS updated on the progress of the IVS.* *Director also sought direction from the Commission on issuance of IVR requested by two Political Parties against their candidates.*	**To this the Commission directed to:** ● **Develop SOP on the opportunity to hear from the affected individuals in case of perceived anomalies and dissatisfaction related to issuance of Integrity Vetting Report.** ● **Issue the report to the political parties as per the normal process (how it is being shared to RCSC). However, noted to have a protocol in place.** ● **PPD in consultation with the DoPS and DoPE to liaise with the Election Commission of Bhutan and explore means and strategies towards formalizing understandings related to Integrity Vetting and other education programmes.**

Deki

4.	**Update on travel budget – AFS** *Since the allocated travel budget for investigation has been exhausted, the Sr. Finance Officer presented recommendations of the 4th Finance Committee (FC) meeting conducted on 25 October 2022 as follows:* *1. Explore funds from Financial Institute;* *2. Write to Ministry of Finance (MoF) seeking supplementary budget for case no 24 & 27 – 32/2022; and* *3. To request for re-appropriation from capital activities.* *In addition, the Sr. FO proposed if the CD account for the endowment fund could be closed and open a Saving Account so as to accrue interest.*	**To this, the Commission decided to informally talk with the Financial Institute along with the Royal Monetary Authority on recommendation 1. If it is not found feasible, directed to write to the MoF seeking supplementary budget.** **Since the endowment fund was for staff welfare, instead of opening a new Saving Account, the Commission directed to discontinue the CD account and deposit the endowment fund to the Staff Welfare Scheme's account.**
5.	**Seek endorsement on the payment of salary for Security Personnel at P/ling from Endowment Fund – AFS** *Given the urgency to recruit security personnel at Phuentsholing Field Office, Sr. FO sought endorsement of the Commission to meet their salary from the endowment fund.*	**Endorsed as proposed.**
6.	**Apprise on the letter received from OAG requesting to route the 'Public Service Model Code of Conduct' through Cabinet – LD** *In response to the ACC's letter to OAG vide ACC/LD-06/2022/2216, the OAG vide letter OAG/DD/2022/148 requested ACC to route the Public Service Model Code of Conduct through the Cabinet citing Rules of Procedure for Drafting and Reviewing of Bills and Delegated Legislations.* *To this, LD is of view that doing this would contravene Section 6 and 35 of ACAB 2011 and deems unnecessary to do as advised (presentation slides attached as annex 2)*	**To this, the Commission decided to go with the recommendation of LD to not rely on the review process and directed to acknowledge receipt of the OAG's letter.**

Deki

7.	**Present the draft Action Taken Report to the Department of Information Technology & Telecom under the Ministry of Information and Communication as per their letter no. *DITT-AMD/e-GoVPolicy/278* dated *Oct 17, 2022* – PPD** *Towards ensuring sensitivity in sharing personal information of the staff, the Ministry of Information and Communication (MoIC) issued Executive Order vide MoIC(M)-02/133 requiring agencies to undertake necessary actions and furnish Action Taken Report (ATR) on the same. To this, Asst. Information and Media Officer apprised the Commission on the measures (ATR attached as annex 3) taken by ACC in compliance to the Executive Order.*	**The Commission noted the ATR and directed to:** ● **Convey Commission's appreciation and support to such initiative.** ● **Mention on the Commission's approach of revealing identity of individuals after the adjudication of cases, when sharing ATR as per its official functioning.** ● **Share as annexure the ACC Ethical Code of Conduct and Oath of Affirmation & Allegiance which specifically mentions the need to maintain confidentiality.** ● **Review if our Press Release contradicts the notification by MoIC.** **The Commission directed PPD to develop a Media engagement framework between ACC and OAG as per the MoU.**
8.	**Present the action on Late and Non-Declarants – ADMD** *The ADMD presented justifications received from late declarants and non-declarants (presentation slides attached as annex 4)* *In addition, the Division also presented a way forward for the AD verification and proposed to proactively verify AD of:* *1. Re-elected Gups* *2. One sector/agency with the highest number of complaints received by ACC.*	**Based on the recommendation of the Division and the plausibility of the justifications, the Commission endorsed to waive off and impose the penalty (Decisions against late declarants and non-declarants attached as annex 4)** **Regarding AD verification, the Commission endorsed the proposal to verify the AD of re-elected Gups. As for the sector/agency, the Commission directed to verify the AD of declarants from Punakha Dzongkhag and Ministry of Works & Human Settlement.**
9.	**Present the draft input from ACC for the State of the Nation Report – PPD** *The PPD presented the draft input for the State of Nation Report for endorsement.*	**In principle, the Commission endorsed the write-up and directed to emphasize on the Royal Address of the 114th National Day and issues related to the Human Resource.**

Deki

10.	**Others:** **1. Letter received from Department of Geology and Mines (DGM)** *The LD apprised the letter received from the DGM seeking Commission's advice on whether or not to allow T Dema to shift the materials crushed in her crushing unit by M/S Nob Enterprise and let her resume the operation of the crusher. The LD also presented their recommendations (Presentation slides attached as annex 5)*	**To this, the Commission directed the following:** ● **Write to the DGM indicating the need to quantify the mineral stacked at the stockyard along with relevant stakeholders.** ● **Draw clarity on who will bear the cost for shifting the minerals.** ● **Ensure that T Dema is not crushing those materials in question when she resumes the operation.** ● **Investigation team to find out if T Dema is also involved in the export.**

Commissioner **Commissioner** **Chairperson**

eversign

Audit Trail

Document Details

Title	101th Com. Mtg_Minutes.pdf
File Name	101th Com. Mtg_Minutes.pdf
Document ID	9a548f99a0644d6eb5cabf2e9cfc8b04
Fingerprint	64682c5cabe67903620ddcbca2948664
Status	Completed

Document History

Document Created	Document Created by Tashi Yangzom (tyangzom@acc.org.bt) Fingerprint: 048dda0ec9d69e31f51b87cf2e1e19bc	Nov 02 2022 05:01AM UTC
Document Sent	Document Sent to A Karma Rinzin (akrinzin@acc.org.bt)	Nov 02 2022 05:01AM UTC
Document Viewed	Document Viewed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 202.144.157.154	Nov 02 2022 06:38AM UTC
Document Viewed	Document Viewed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.140	Nov 02 2022 07:13AM UTC
Document Signed	Document Signed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.140	Nov 02 2022 07:17AM UTC
Document Sent	Document Sent to Jamtsho (jamtsho@acc.org.bt)	Nov 02 2022 07:17AM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 119.2.118.22	Nov 02 2022 04:50PM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 119.2.118.22	Nov 02 2022 04:51PM UTC
Document Viewed	Document Viewed by Jamtsho (jamtsho@acc.org.bt) IP: 119.2.118.22	Nov 02 2022 04:51PM UTC
Document Signed	Document Signed by Jamtsho (jamtsho@acc.org.bt) IP: 119.2.118.22	Nov 02 2022 04:53PM UTC
Document Sent	Document Sent to Deki Pema (dpema@acc.org.bt)	Nov 02 2022 04:53PM UTC

Document Viewed	Document Viewed by Deki Pema (dpema@acc.org.bt) IP: 119.2.118.125	Nov 02 2022 04:58PM UTC
Document Signed	Document Signed by Deki Pema (dpema@acc.org.bt) IP: 119.2.118.147	Nov 02 2022 07:36PM UTC
Document Completed	This document has been completed. Fingerprint: 64682c5cabe67903620ddcbca2948664	Nov 02 2022 07:36PM UTC

Processed by eversign

ACC Concept

- This documentary will consist of **eight episodes of interviews**.
- Based on the target audience and themes, the relevant people (panel members) will be interviewed by giving the prompt from His Majesty's quotation about that particular theme.
- Target Audience includes (4):
    - General
    - Farmers/parents/teachers/students/youths/ graduates
    - Business, civil servants, corporations, and private sector
    - Elected officials and parliamentarians
- The chosen themes (11):
- Integrity
- Complacency
- Responsibility
- Discipline
- Professionalism
- Accountability
- Check and Balance
- Misplaced Compassion
- Corruption
- Meritocracy
- Leadership
- The questions include:
    - Take away from the HM address (What did you understand)
    - How have things changed after the address (Improved or remained the same)
    - What have you done (Role)?
    - The paradigm shift (how can you contribute further)?
- The interviews will be broadcasted episode-wise.
- Each episode will be allocated 2 minutes each except for Episode 1, which will be 1 minute.
- A total of 2 interviews will be broadcasted per episode.

- Each interviewee will be given a minute. **Their backstories will be inserted as they speak.**
- The conclusion will be added in the last interview.

The themes and intended target audience are allocated as reflected in the table below:

Category /Target Audience	Themes	Panel Member	Time Allocation (minutes)	Total Time	Episode
General	Define corruption, present the corruption scenario and introduce ACC	*Through infographics, photos, and footage*	1	1	1
Farmers/parents/teachers/students/youths/ graduates	Integrity	*A student*	1	2	2
	Complacency	*A graduate*	1		
	Responsibility	*A teacher*	1	2	3
	Discipline	*A parent*	1		
Business, civil servants, corporations, and private sector	Professionalism	*A civil servant*	1	2	4
	Accountability	*A businessman*	1		
		A contractor	1	2	5
	Check and Balance	*A corporate official*	1		
		A civil servant	1	2	6
	Misplaced Compassion	*RCSC Chairperson*	1		

Elected officials and parliamentarians	Corruption	*An NC member*	1	2	7
	Leadership	*An elected parliamentarian(MP)*	1		
	Meritocracy	*A Gup*	1	2	8
General	Give concluding remarks, the way forward from ACC	*ACC chairperson*	1		

For themes, the following quotations of the His Majesty the King:

Theme	Panel Member	HM's Quotation
Introductory Remarks	Define corruption, present the corruption scenario and introduce ACC	**His Majesty's Address to the Nation on the 114th National Day.**
Integrity	*A student (businessmen, contractor)*	**In short let me say, if we uphold values such as unity, harmony, integrity, trust, justice, and peace – if we respect their great importance – then it will be reflected in a strong civil society. A strong civil society is a fundamental pillar of democracy- 103rd National Day Address, 2010**

Complacency	*A graduate*	**The next generation does not value the hardships of their parents and ancestors, and lose the drive and determination, and the mettle which were the very basis of their parents' successes. They become lazy, complacent, and incapable of sustaining the legacy of their parents- 110th National Day Address, 2017**
Responsibility	*A teacher*	**We all know that we shoulder responsibilities based on our professions whether they be in the civil service, business or even as parents and teachers. We know we must excel in these duties in order to succeed as individuals and as a nation- 103th National Day Address, 2010.**
Discipline	*A parent/farmer*	**The strength of our national character, courage, grit, and fortitude must define every aspect of our national endeavor- 114th National Day Address, 2021**
Professionalism	*A civil servant*	**As a landlocked nation with a small population, it is vital that, whatever we do, we work harder and do better than other nations- 2006 National Day Address in Thimphu (as Crown Prince)**
Accountability	*A businessman*	**Our public servants will fail in their duty if they do not learn from past mistakes and correct them, if they are unreceptive to feedback, if they lack accountability, if they are unresponsive to new ideas and solutions, if they have poor communication and coordination, or if organizations expand and multiply without direction or coherent vision- 111th National Day, 2018**
	A contractor	**From now on, all of us must boldly embrace accountability as a measure of our service, should we falter, deviate, and err in the service of our country-114th National Day Address 2021**
Check and Balance	*A corporate official*	**The history of global and regional trends in other countries have shown that the downfall of countries are caused by failure of governments, breakdown in the rule of law, economic crises, and the growing economic**

		disparities between the rich and the poor. People feel helpless, and lose faith and trust in their governments and in each other- 110th National Day Address 2017
	A civil servant	**The main aspiration of the people is that the 11th plan will succeed, and prosperity will grow all around the country. The realization of this goal depends more than ever on the government's commitment to good governance, which should include check and balance, openness and transparency-107th National Day Address 2014**
Misplaced Compassion	*RCSC Chairperson*	**Foreign experts and professionals have commented that our rules, regulations, laws and institutional procedures are among the best in the world. Yet we are not able to reap the benefits. Where have we gone wrong? Could it be due to our misplaced compassion by not holding people accountable, not removing incompetent people but instead tolerating and even rewarding underperformers? – 114th National Day Address 2021**
Corruption	*An NC member*	**They succumb to mediocrity, which, leading to mismanagement of resources and opportunities, inevitably deteriorates into corruption. This is how societies have disintegrated and nations have failed-110th National Day Address 2017**
Leadership	*An elected parliamentarian(MP)*	**It is your duty to set a clear, principled, and noble path for politics and democracy in the future- 112th National day Address, 2007.**
Meritocracy	*A gup*	**We mustn't allow the latter to lose morale by rewarding everyone indiscriminately, irrespective of his or her performance. That is why, corruption must be curtailed and, more than ever before, extraordinary service must be recognized and rewarded- 107th National Day Address, 2014**

Concluding remarks	*Through infographics, and an interview with an ACC chairperson*	**The way forward from ACC from the ACC Chairperson.**

Anti-Corruption Commission's Action Taken Report

1)Publishing of personal information and data: Identify and classify personal information collected, processed, and transferred using various methods, including email, system/applications, website, social media, etc) and offline/hardcopy records.

Protocol in Place:

-Management of information of the Asset Declarant: all the details collected are maintained separately in the system for which only authorized persons have access.

-Management of information in case: Profiling of the accused is done and data is maintained. The information is shared only on a 'need to know' basis. The details of the individual at the initial stage are not shared even with the Commission. There is a need to declare 'conflict of interest' before sharing of information.

-Management of details of Complaints: Maintains strict confidentiality of complainants, witnesses and information from complaints. Information is shared on a 'need to know' basis even for the purposes of addressing and resolving complaints. Complaints/information are stored securely to avoid their accidental or unauthorized disclosure.

2)Data purpose and access: Confine personal data collected for the stated purpose only and ensure confidentiality of personal and sensitive information by limiting access to authorized personnel only.

Protocol in Place:

-Information on Asset Declaration: when asked for information in-house, certain information is provided but if the information is to be used as evidence at the Court, it is routed through Commission and similarly, if people outside of the Anti-Corruption Commission (ACC) request for information about other people, it is routed through Commission.

-Information on cases: when information on cases are requested by media focal personnel, he/she should contact the media officer and accordingly, the information is provided after consultation with relevant department/division and appraising the Commission (procedure is mentioned in the social media guidelines).

3)Anonymization and de-identification of personal information and data: Discontinue the practice of posting and disclosing the personal information of staff on websites and social media platforms. For sharing contacts of focal persons on websites or official social media pages to handle online requests, the info@agency name alias which is linked to the concerned focal persons can be shared. The idea is to anonymize information that needs to be shared publicly. Further, information such as the results of interviews should be shared individually and its record should be kept confidential for audit purposes.

Protocol in Place:
Discontinued publishing personal information of the staff on both website and social media platforms. However, we didn't create the info@agency as we already have multiple designated email addresses to handle online requests such as:

-To declare asset, individual concerned have to contact via admd@acc.org.bt or 02-337423
-To lodge complaints there are various modes such as complaint reporting form available on the ACC's website, Phone (02-322987), fax(334869), Juenlam ACC(Whatsapp and Wechat), Walk-in and email(complaints@acc.org.bt)
- During vacancy announcement, it is done through website or official social media handles and the office number is shared. Regarding the results of interviews and selection of candidates, the individuals concerned are being contacted and the records are being maintained.

4) **De-identified or anonymized information should be made available for research, innovation, and data analysis purposes for providing useful insights.**

Protocol in Place:

-Except for confidential/sensitive reports/information, reports such as research reports, system study reports, annual reports are publicly accessible through the official website (https://www.acc.org.bt/)

5)Privacy Policy and Data Protection: Introduce a privacy policy or notice that is easily accessible from the website or any other place where personal information is either requested or collected.

Protocol in Place:

-Any information collected, especially confidential information, has to be routed through the Commission. Given the mandate of the organization, no personal data are shared until and unless permissible by law.

6) **Institute a mechanism to address the privacy and data protection requirements and accountability for loss, unauthorized access/modification/disclosure/misuse of information. It should also include plans to address the obligations of the agency and the staff, through training and awareness initiatives**.

Protocol in Place:

- The Acceptable Use Policy is in place which details out the **dos** and **don'ts** in terms of using electronic devices in the ACC along with accountability thereof.
- The use of internet (wifi) is restricted. It can be activated only by the ICT Officer.

- We already have systems in place like firewalls.
- New recruits/employees are informed during induction and they are also required to sign the confidentiality form.

7) Awareness: Raise awareness among staff at all levels regarding the disclosure of personal information and the effect of the disclosure on privacy. When was the awareness conducted or will be conducted?

Protocol in Place:

- During Quarterly Staff Meeting (four times in a year), induction program and mandatory training, the staff and the new recruits are briefed/sensitized about the need to maintain privacy of personal information.
- Any system threats (malware/virus) are timely shared by the ICT through common mail to all staff for information and compliance.

CoC- sent as annex

Press release- explain how we are doing it – only adjudicated cases for information & deterrence

Prosecution – ATR- official correspondences

Acceptable user policy- sent annex – convey appreciation

Commission advice on T. Dema Stone Crushing Unit Located at Daupani, Samtse in connection to case 22/2022

October 26, 2022

- Anti –Corruption Commission
- Lhado Lam, Kawangjangsa
- Thimphu, BHUTAN

Seeking Commission's advice on T. Dema Stone Segregate Industries

- M/S Nob Minerals has used T. Dema's crusher to crush dolomite sourced from Khanavertey area based on mutual agreement executed between the parties 2019.
- With the crushed dolomite stacked at her crushing area, she has not been able to operate the crusher.
- Requested the DGM for an approval to shift the crushed materials belonging to M/S Nob Minerals around 100 meters away so as to enable her to operate her crusher.
- Since the case is under ACC's investigation, the DGM has sought the Commission's advice whether or not to allow her to shift the materials crushed in her crushing unit and let her resume the operation of the crusher.

Seeking Commission's advice on T. Dema Stone Segregate Industries

Allegation: Allowing the operation of surface collection site at Khanarvarty without valid permit and also beyond the approved area;

Allowing the surface collection activity by third parties – Mr. Ugyen Samdrup & M/S T. Dema Stone Crushing Unit at Tashijong

Findings: estimated quantity of minerals at Stockyard and crushing area.

- M/S Nob Minerals : **17,534 MT**
- M/S JDCU : **17,895 MT**
- M/S T. Dema Stone Curshing Unit : **2,274 MT**

Seeking Commission's advice on T. Dema Stone Segregate Industries

Administrative Actions:

- The DGM to seize the estimated quantity of 13,914 MT;
- Cancel the surface collection permits area earmarked for **M/S Nob Minerals & M/S JDCU** for engaging in illegal extraction of dolomite beyond the approved area.

Note: -

- M/S T. Dema Stone Crushing Unit has not been directly implicated. Their report doesn't say anything.

For information:

- Since the allegation is under ACC's investigation, the administrative actions not yet implemented.
- The materials at the stockyard and crushing areas are under suspension.

Seeking Commission's advice on T. Dema Stone Segregate Industries

Team's Recommendation:

Write back to the DGM to:

- Firstly, estimate the quantity of minerals stacked the Stockyard and the crushing area belonging to all the permit holders and keep it under suspension until further order of the Commission.

- Allow M/S T. Dema Stone Crushing Unit to shift the crushed materials belonging to M/S Nob Minerals materials and let her resume the operation of the crusher.

Kadrin Chhey La